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# MEDIATION AGREEMENT

between:

**PETER ANDREW FAUCITT**

(Identity Number: 5204305708185)

and

**JACQUELINE FAUCITT**

(Identity Number: 5706070898181)

and

**DANIEL JAMES FAUCITT**

(Identity Number: 8207155300182)

(Together "the Parties")

1. **Introduction**

1.1. Peter Faucitt obtained an order against Jacqui Faucitt and Daniel Faucitt under case no: 2025-137857. A number of disputes arise in relation to the order and the relief sought in respect of part B of the proceedings under case no: 2025-137857.

1.2. The parties have agreed to attempt in good faith to settle their differences by way of a mediation to be held at the offices of Edward Nathan Sonnenbergs Inc., situated at Tower 1, the MARC, 129 Rivonia Road, Sandton, 2196 on18 September 2025 commencing at 10h00 and adjourning at 17h30 (or sooner, as the case may be), unless otherwise agreed by the parties ("**mediation**").

1.3. The mediation shall be conducted:

1.3.1. in private; and

1.3.2. off the record on a without prejudice basis; as set out herein.

2. **Mediator**

The mediator has been identified and contracted jointly by the parties. The mediator will be Charles Nupen.

3. **Authority**

3.1. At least one representative of each party present at the mediation will have full authority to bind that party to the terms of any settlement resulting from the mediation.

3.2. The person signing this agreement on behalf of each of the parties warrants having authority to bind that party and all other persons present at the mediation on that party's behalf.

4. **Mediation fee**

4.1. The Mediator's fee will be R4 000.00 per hour plus VAT for preparation time, including a charge out rate of on average 8 minutes per email sent or received, and R32 000.00 plus VAT for a booked day.

4.2. The parties agree to split the mediation fees as follows:

4.2.1. Peter Faucitt will bear 50% of the mediator's fees; and

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4.2.2. Jacqui and Daniel Faucitt will bear the other 50% of the mediator's fees.

4.3. The mediator will invoice on the basis as set out in paragraph 4.2 above. The parties will settle the mediator's fee within 14 days of receipt of the mediator's invoice.

5. **Confidentiality and without prejudice status**

5.1. Every person involved in the mediation will keep confidential and not use for any collateral or ulterior purpose all information (whether given orally, in writing or otherwise) arising out of or in connection with the mediation, including the fact of any settlement and its terms, but this does not apply to the fact that the mediation is to take place or has taken place or where disclosure is required by law to implement or enforce the terms of any settlement.

5.2. All information arising out of, or in connection with the mediation will be without prejudice, privileged and not admissible as evidence or disclosable in any current or subsequent litigation or other proceedings whatsoever. This does not apply to any information which would in any event have been admissible or disclosable in any such proceedings, and will not apply to any settlement agreement reached therein, if any.

5.3. The mediator will not disclose to any other party any information given to the mediator by a party in confidence without the express consent of that party or unless required by law to make a disclosure.

5.4 The parties will not call the mediator as a witness, expert or consultant, nor require the mediator to produce in evidence any records or notes or other document relating to the mediation in any litigation or other proceedings whatsoever arising from, or in connection with the dispute or the mediation. The mediator will not voluntarily act as a witness without the written agreement of all the parties. If any Party applies to call the mediator as a witness that party will fully indemnify the mediator in respect of any costs incurred in resisting or responding to such an application, including reimbursement at the mediator's standard hourly rate for the mediator's time spent in resisting or responding to such allegation.

5.5. No verbatim recording or transcript of the mediation will be made.

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6. **Rules of procedure**

6.1. The mediator will chair the mediation and will have the discretion to conduct the mediation in such manner as the mediator determines.

6.2. Each party undertakes to co-operate in good faith with the mediator in the conduct of the mediation.

6.3. The mediator may communicate with the parties orally or in writing, together or individually, and may convene a meeting or meetings at a venue to be determined by the mediator after consulting the parties.

6.4. The mediator will not adjudicate the dispute, nor make any decision which is binding upon the parties concerning the resolution of the dispute. The resolution of the dispute depends solely upon the parties achieving agreement, and any opinion expressed or recommendation made by the mediator during the proceedings, *mero motu* or at the request of the parties, will have no binding status.

7. **Exchange of information**

The parties may submit documentation to the mediator prior to the commencement of the proceedings. Should a party choose to disclose documentation in confidence to the mediator it shall clearly indicate in writing to the mediator the status of such documentation.

8. **Settlement Agreement**

Any settlement reached at the mediation will be on the record but will not be legally binding until it has been recorded in writing and signed by, or on behalf of, the parties other than the mediator.

9. **Termination**

9.1. The mediation will terminate when:

9.1.1. the mediator and the other party receive written notice from a party stating that that party withdraws from the mediation provided that no party may withdraw without first verbally notifying the mediator and the other parties and giving the mediator a reasonable opportunity to mediate on that party's continued participation in the mediation;

9.1.2. the mediator, at the discretion of the mediator, withdraws from the mediation and gives written notice to that effect to the parties stating that in the mediator's opinion there is no reasonable prospect of a settlement and is therefore terminating the mediation; or

9.1.3. a written settlement agreement is concluded provided that the parties and the mediator may agree in writing to continue the mediation in respect of any part of the dispute that remains unsettled after the conclusion of the settlement agreement.

9.2. The mediator may also adjourn the mediation in order to allow parties to consider specific proposals, obtain further information or for any other reason which the mediator considers helpful in furthering the mediation process. The mediation will resume by agreement among the mediator and each of the parties.

10. **Legal status and governing law**

10.1. Any contemplated or existing litigation or arbitration or other formal proceeding in relation to the dispute may be started or continued despite the mediation unless the parties agree or a court orders otherwise.

10.2. This agreement is governed by the laws of South Africa and the courts of South Africa will have exclusive jurisdiction to decide any matters arising out of this agreement or the mediation.

11. **Exclusion of Liability**

The mediator is not liable to the parties for any act or omission arising out of or in connection with the mediation or the services provided by the mediator in relation to the mediation unless the act or omission is shown to have been in bad faith or fraudulent or involved wilful misconduct.

12. This agreement may be signed in separate counterparts, each of which shall be deemed to be an original and all of which taken together shall constitute one and the same instrument. A counterpart of this agreement in telefax or e-mail form shall be conclusive evidence of the original signature and shall be as effective in law as the counterparts in original form showing the original signatures.

SIGNED AT BOTANBVIEW ON THIS 17th DAY OF SEPTEMBER 2025

PETER ANDREW FAUCITT

SIGNED AT ON THIS 18th DAY OF SEPTEMBER 2025

JACQUELINE FAUCITT

SIGNED AT ON THIS 18TH DAY OF SEPTEMBER 2025

DANIEL JAMES FAUCITT